

Access to Information Framework

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1. Policy Statement

The *Right to Information Act 2009* (Qld) (RTI Act) and the *Information Privacy Act 2009* (Qld) (IP Act) regulates how Public Sector agencies, including the Queensland Rural and Industry Development Authority (QRIDA) must deal with requests to access and amend information held by QRIDA. QRIDA also recognises that the intent of the RTI Act and IP Act and Information Privacy Principles (IPPs) and QRIDA'S obligations under the legislation is to encourage proactive release of information administratively unless, it is contrary to the public interest or privacy principles to release the information.

2. Purpose

This Access to Information Framework addresses QRIDA's requirements and responsibilities in dealing with information under the RTI and IP Acts and an individual's rights to apply for access to documents/records.

3. Principles

This framework supports QRIDA's commitment to the following principles:

- (a) Access to Authority held information should be released as a matter of course, unless there is a good reason not to (RTI and IP applications are a last resort);
- (b) that the RTI Act creates an enforceable right of access or in the case of the IP Act an enforceable right to access or amend, information in QRIDA's possession or control unless the information is exempt, or on the balance, it is contrary to Public interests or Privacy Principles to give access to the information.
- (c) support corporate governance, transparency and accountability by communicating this policy and procedure framework and its accompanying responsibilities to QRIDA employees.

4. Scope

This Access to Information Framework encompasses QRIDA's responsibilities under the Queensland Government information framework, specifically the requirements of the RTI Act and the IP Act and IPPs. This framework has implications and application to all QRIDA employees.

5. Responsibilities

The QRIDA Executive Leadership Team (ELT) is responsible for approving this Framework and supporting its implementation throughout the organisation.

The CEO and General Manager Corporate Capability and Programs are responsible for acting as decision-maker for any internal reviews.

QRIDA Managers are responsible for ensuring employees under their management are informed of this Framework during induction and comply with it on an ongoing basis.

QRIDA business units shall designate a responsible officer to liaise with Business Development and Engagement business unit on the maintenance of information available to clients and the public, including information contained on the QRIDA website.

QRIDA employees are responsible for:

- (a) Familiarising themselves with the requirements of this Framework;

- (b) Acting in accordance with this Framework and the QRIDA Code of Conduct; and
- (c) Rendering all possible assistance to the public in responding to requests for information.

The Senior Manager Corporate Governance and Performance is responsible for:

- (a) Ensuring all personal information requests are appropriately managed as QRIDA's delegated officer and decision-maker under section 30 of the RTI Act or section 50 of the IP Act;
- (b) Exercise discretion on the waiver of any fees associated with RTI requests;
- (c) Reporting on achievements in meeting RTI Act requirements; and
- (d) Reviewing this policy and procedure framework and coordinating consultation to ensure it remains current.

The Senior Manager, Technology and Business Information is responsible for

- (a) maintaining technology and business information systems to ensure information is protected and secure
- (b) maintaining the Information Security Framework which includes associated policies and procedures for the management and reporting of information security and data breaches.

6. Context

Effective information management is fundamental to corporate governance, accountability and quality service delivery by QRIDA. The RTI Act and IP Act support an individual's rights to apply for access to documents/records and QRIDA is committed to the accessibility of information and being proactive in the provision of information to the public.

QRIDA shall promote a culture open to the release of information in line with the RTI Act and IP Act and render all possible assistance to the public in responding to their requests for information.

The following areas of this document detail QRIDA's procedural approach to meeting its commitment and requirements under the RTI Act and IP Act.

6.1 Administrative Access to Information

Administrative access is appropriate where any of the following apply:

- there is demand for access to the requested information
- there are no significant adverse effects as a result of disclosing the information, either generally or to particular applicants; and
- the information involved is of a kind that would be released if it was requested under the RTI or IP Act, either generally or to particular applicants.

6.1.1 Pro-active Disclosure

QRIDA shall:

- (a) Assess the information requirements of clients and the public and be pro-active in making information available via the most appropriate communication channel including the QRIDA website at no cost to the public where possible;
- (b) Review information available such as contained on the QRIDA website, regularly for accuracy and currency and update information accordingly;

- (c) Publish on its website appropriate information to ensure clients and the public are aware of what information is collected, for what purpose, their RTI and IP rights and how to access information; and
- (d) Include in Customer Satisfaction Surveys a question pertaining to how useful the current information provided has been and what improvements or further information clients would find useful.

6.1.2 Assessment for proactive release

QRIDA shall in determining information for release apply the following assessment of information:

- (a) A test for exempt information, based on Schedule 3 of the RTI Act and Schedule 1 of the IP Act which details categories of information that are exempt (e.g. legal professional privilege) from release under the RTI Act; and
- (b) A public interest balancing test, based on Schedule 4 of the RTI Act which provides the factors to be considered in determining whether the release of the information would be contrary to the public interest or not.

6.1.3 Publication scheme

Corporate Governance and Performance business unit in consultation with Business Development and Engagement business unit shall:

- (a) Maintain on the QRIDA website a Publication Scheme in line with the requirements outlined at Queensland Government - Right to Information - Publication schemes (Ministerial Guidelines for Publication schemes and disclosure logs); and
- (b) Update information (as required) contained in the Publication Scheme.

Business Development and Engagement business unit shall maintain a record of documents describing changes to the Publication Scheme as a public record.

6.2 Legislated Access to Information Applications under the RTI Act or IP Act

QRIDA shall promote a culture open to the release of information in line with the RTI and IP Act. To facilitate this culture and meet RTI and IP Act requirements the following procedures are to be followed:

- (a) QRIDA business units shall render all possible assistance to the public in responding to requests for information;
- (b) Corporate Governance and Performance business unit shall:
 - (i) Be the designated area for the processing of RTI and IP access applications and shall date stamp applications on receipt. All business units shall ensure that any RTI and IP access applications received in their area are date stamped and promptly forwarded to Corporate Governance and Programs business unit for processing;
 - (ii) Ensure requests for information are provided on the Queensland Government approved form (Right to Information and Privacy Access Application), or by exception in any other format;
 - (iii) Maintain a system for the recording, tracking and monitoring of RTI and IP access applications and reviews;
 - (iv) Ensure evidence of identity requirements, including proof of authorisation to act on another person's behalf, as outlined on the RTI and IP access application, are met;

- (v) Liaise with the applicant if required for clarification of evidence of identity, clarification of any information on the RTI access application including determining scope and determining format options for providing the information to the applicant;
- (vi) Ensure the application processing charge for the release of information as determined in the RTI Act has been paid by the applicant. Where the fee has not been received by QRIDA, initiate contact with the applicant and advise of the required payment before processing the application. (Certain applicants may be able to seek a waiver of the fee and this must be completed and validated on the RTI access application);
- (vii) Arrange any refund of the RTI access application fee e.g. where the application relates solely to the Information Privacy (IP) Act information (IP access information applications are free) or a waiver of the fee is applicable to certain applicants;
- (viii) Process RTI or IP access or amendment requests in accordance with the provisions of the RTI or IP Act promptly and fairly. This shall include acting in accordance with all relevant timeframes including compliance with the processing period of 25 business days from receipt of the application and allowing for any timeframe revisions or extensions as established in the RTI or IP Act;
- (ix) In accordance with RTI Act prepare charges estimates and application fees, notices and schedule of notes.
- (x) As required, liaise with relevant business units when reviewing or seeking information to be released under the RTI access application;
- (xi) As required liaise with Program Delivery Services on RTI applications that may have an impact on the appeals process in relation to financial programs offered by QRIDA i.e. an extension of the appeals period if requested by the clients;
- (xii) As required and following consultation with the General Manager Corporate Capability and Programs seek legal advice on matters relating to the release of information;
- (xiii) Record in writing all extensions of the 25 day business processing period including any time extensions negotiated with the applicant and attach to the RTI access application; and
- (xiv) As required seek assistance from the Office of the Information Commissioner (OIC) on any matters;
- (xv) Ensure records created or received in relation to an RTI request are captured in a recognised recordkeeping system;
- (c) Ensure the requirements of the RTI Act are followed where third-party consultation is required;
- (d) Ensure when transferring RTI access applications to another Agency, that the requirements of the RTI or IP Act are followed, and access applications are tracked, and the applicant advised of the transfer (see checklists held in Corporate Governance and Programs business unit);
- (e) The Senior Manager Corporate Governance and Performance shall:
 - (i) Be the QRIDA designated delegate to manage all information requests and act as decision-maker under section 30 of the RTI Act and section 50 of the IP Act in relation to determining information for release.

- (ii) Release information sought in the RTI access application unless the information is subject to:
 - Exemption provisions under Schedule 3 of the RTI Act or Schedule 5 of the IP Act which details categories of information that is exempt (e.g. legal professional privilege) from release; or
 - A public interest balancing test under Schedule 4 of the RTI Act or Schedule 1 of the IP Act which provides the factors to be considered in determining whether on the balance the release of the information would be contrary to the public interest;
- (iii) Ensure information not to be released is appropriately redacted from any documents/records released e.g. personal information;
- (iv) Notify the applicant, within the relevant timeframes designated in the RTI or IP Act, of the decision (with the reasons for the decision) to amend or refuse access to information sought or that the information sought is outside the scope of the RTI or IP Act; and
- (v) Advise the applicant of the appeals process should they wish to appeal the decision to amend or refuse access to information sought.

6.3 Review and Appeal of Information Released under RTI Act or IP Act

Where an applicant is not satisfied with the original decision determining what information is to be released the applicant may apply in writing, for a review of the decision. This review process may entail the applicant choosing an internal review or proceeding directly to an external review. There are no fees or charges for either internal or external reviews.

6.3.1 Internal Review

An applicant can apply in writing for an internal review within 20 business days of receiving the original decision. An internal review must be dealt with by a QRIDA officer who was not the decision-maker in the original application.

Where the General Manager Corporate Capability and Programs or alternatively CEO was not part of the original decision process he/she shall:

- (a) Act as decision-maker for any internal reviews following consultation with the relevant business unit responsible for the managing the information and issue a “fresh decision” on what information is to be released within 20 days of receipt of the internal review application; and
- (b) Arrange for the applicant to be advised of the decision under review and the information to be released to the applicant.

6.3.2 External Review

Where an applicant is dissatisfied with either the original or internal review decisions determining what information is to be released under the RTI Act or IP Act, the applicant may apply to the OIC for an “external review” of QRIDA’s decision.

The applicant must lodge with the OIC an application for external review within 20 business days of receiving the original decision or internal review decision. This external review application must be lodged in writing and meeting all review requirements under the RTI or IP Act via a letter or by using the Office of the Information Commissioner - [Application for External review](#) form.

All QRIDA officers involved in the original decision and or internal review decision must provide all assistance to the OIC during the external review.

6.4 Privacy Breaches

QRIDA shall ensure that systems are in place to manage and investigate all breaches of staff members and client's personal information and privacy complaints. All breaches in the first instance are reported to the General Manager, Corporate Capability and Programs.

Where required, the General Manager, Corporate Capability and Programs shall ensure appropriate procedural changes are implemented following the investigation of personal information breaches to stop further breaches.

6.5 Consultants and contractors

QRIDA shall when entering into a contract for the supply, by a third party, of goods or services, take all reasonable steps to contractually bind the third party to comply with the requirements of the RTI Act and IP Act.

6.6 Handling of Information

QRIDA officers preparing, processing, reviewing and finalising documents/records must ensure that:

- (a) All wording, comments and remarks made on documents/records by them reflect a "professional" attitude and approach i.e. there are no personal observations or remarks on the documents/records;
- (b) All discussions are appropriately recorded on the documents/records; and
- (c) "Post-it notes" are not used to record discussions or information.

6.7 Training

Managers are to ensure employees under their management and new employees at induction are informed of this Framework and appropriate awareness is provided on RTI and IP handling obligations.

The Senior Manager Corporate Governance and Performance shall:

- (a) As required, provide appropriate support, training and direction to managers on the RTI Act and IP Act requirements; and
- (b) Ensure staff involved in processing RTI and IP access applications are appropriately trained in the requirements of the Act to support their duties and responsibilities.

6.8 Reporting

The Senior Manager Corporate Governance and Performance shall complete all required reporting, compliance and audits as administered by the OIC.

7. Information Privacy Principles (IPPs) and Obligations

The Information Privacy responsibilities and obligations are contained in the IP Act and the 11 Information Privacy Principles (IPP's) contained in the Schedule 3 of the *Information Privacy Act 2009* (Qld). QRIDA will comply with these established principles and the IP Act on how personal information is collected and managed.

7.1 Collection of personal information (IPPs 1, 2, 3)

QRIDA shall only collect personal information:

- (a) For lawful purpose directly related to its business function or activity; and
- (b) By lawful or fair means and not in a manner that is unreasonably intrusive to the privacy of the provider of information including but not limited to the staff member or client concerned.

Where personal information is to be collected from a staff member or client, QRIDA shall ensure the staff member or client is aware of:

- (a) Why the information is being collected and its use including any legislative obligations on QRIDA; and
- (b) Any third parties to which it is QRIDA's usual practice to disclose personal information in accordance with an agreed Memorandum of Understanding.

QRIDA shall take all reasonable steps to ensure that personal information collected is up to date, accurate and complete including recording when the personal information was collected and updated.

7.2 Security of personal information (IPP 4)

QRIDA shall ensure appropriate security systems are in place to protect personal information. The QRIDA Information Security Framework details policies and procedures for the ongoing security of personal information.

QRIDA shall ensure:

- (a) The use of personal information is restricted to officers who have a legitimate need to know the information in the course of QRIDA business operations;
- (b) Personal information is filed securely in appropriately classified files;
- (c) Personal information is protected from unauthorised access, use, modification, disclosure and loss;
- (d) Access to electronic records containing personal information is appropriately controlled and recorded; and
- (e) Disposal of personal information is appropriately controlled.

7.3 Information about personal information holdings (IPP5)

QRIDA shall have in place processes allowing staff members and clients to access their personal information and request amendments to be made. Refer to Section 6 of this Framework.

QRIDA shall maintain records setting out the:

- (a) Nature of the records of personal information kept;
- (b) Purpose for which each type of record is kept;
- (c) Categories or classes of individuals about whom records are kept;
- (d) Period for which each type of record is kept;
- (e) Persons who are entitled to have access to personal information contained in the records and the conditions under which they are entitled to have that access; and
- (f) Steps that should be taken by persons wishing to obtain access to that information covered by the IP Act.

QRIDA shall provide to the public:

- (a) Information about its IP policy and procedures (Refer to Section 6.1.3 for further information;
- (b) The categories of personal information held;
- (c) The main purposes for which the personal information is used; and
- (d) The steps required to obtain access to their personal information.

7.4 Access and amendment of personal information (IPPs 6, 7)

Staff members or clients shall be entitled to access their personal information held by QRIDA to ensure the information held is accurate, relevant, up-to-date, complete and not misleading.

The Senior Manager, Corporate Governance and Performance shall

- (a) appropriately manage all personal information requests and act as decision-maker under section 50 of the IP Act;
- (b) on request from a staff member or client disclose documents/records it holds about that staff member or clients. The disclosure shall be in accordance with the IP Act requirements and other applicable legislation.
- (c) on request from a staff member or clients shall amend personal information contained in documents/records about the staff member or clients. The amendment shall be in accordance with the IP Act requirements and other applicable legislation.
- (d) make appropriate corrections, deletions and additions to personal information contained in a document/record as are reasonable, to ensure that the document/record is:
 - (i) Accurate; and
 - (ii) For the purpose it is being used relevant, up to date, complete and not misleading.

Where the Senior Manager, Corporate Governance is not willing to amend personal information contained in a document/record following a request from the staff member or clients and where there is no decision or recommendation under law to amend the personal information shall attach any statement from the staff member or clients of the correction, deletion or addition sought to the document/record.

7.5 Use and disclosure of personal information (IPPs 8, 9,10,11)

QRIDA shall have the appropriate systems and processes in place to ensure that personal information collected is accurate, up to date and complete prior to being used for the purpose it was collected.

QRIDA shall ensure that personal information is used only for the relevant business function or activity it was collected.

Personal information collected in a document/record about a staff member or clients for a particular purpose shall not be used for any other purpose and not disclosed to third parties except in the following circumstances:

- (a) Where the staff member or clients have consented to the information being used for another purpose or disclosed to a third party; or
- (b) The proposed purpose for which the personal information is to be used is directly related to the original purpose for which the personal information was collected; or

- (c) The staff member or clients concerned is reasonably likely to have been aware, or made aware, that the personal information of that kind is usually passed to a third party; or
- (d) The proposed use or disclosure is authorised or required by law; or
- (e) The proposed use or disclosure is necessary for the enforcement of the law or protection of public revenue (a note to this affect is to be contained with the document/record); or
- (f) The proposed use or disclosure is necessary to prevent or lessen a serious and imminent threat to the life or health of the staff member or client or of another entity.

8. Definitions and Glossary of Terms

Term	Definition
Chief Executive Officer (CEO)	Chief Executive Officer of QRIDA.
Code of Conduct	QRIDA Code of Conduct.
Contrary to public Interest	Determination by QRIDA that disclosure of the document/record would, on the balance be contrary to public interest with regard to section 49 and schedule 4 of the RTI Act and schedule 5 of the IP Act.
Decision-Maker – RTI/IP	The officer delegated under section 30 of the RTI Act or section 50 of the IP Act to be decision-maker and deal with applications.
Disclosure Log	Responses to access to information requests that QRIDA regards as having a wider public interest that have been released under the <i>Right to Information Act 2009</i> .
Document	A document of QRIDA, means a document, other than a document to which the <i>Right to Information Act 2009</i> (RTI Act schedule 1) <i>Information Privacy Act 2009</i> (IP Act schedule 1) does not apply, in the possession, or under the control, of QRIDA whether brought into existence or received in QRIDA, and includes— (a) A document to which the agency is entitled to access; and (b) A document in the possession, or under the control, of an officer of QRIDA in the officer's official capacity. Documents may be items in hard copy or electronic format, including files, reports, emails or other correspondence, computer printouts, maps, plans, photographs, and recordings.
Employee	Award and senior executive positions engaged on a full-time, part-time, permanent, temporary or casual basis (not including agency staff).
Executive Leadership Team (ELT)	Chief Executive Officer General Manager, Program Strategy and Delivery General Manager, Corporate Capability and Programs

Term	Definition
	Director, Business Development and Engagement.
Exempt Information	It includes information that is subject to Cabinet confidentiality, legal professional privilege, and confidential information. It also includes information that is protected from release by other pieces of legislation. The specific classes of information can be found in schedule 3 RTI Act and also apply to exempt Information under the IP Act (IP Act schedule 5).
Manager	An employee of QRIDA who is in charge of a QRIDA business unit and has staff reporting to him/her and exercises a financial or human resource delegation in accordance with QRIDA's Financial Delegation Procedure or Human Resource Delegations Procedure.
Personal Information	Personal information is information or an opinion, including information or an opinion forming part of a database, whether true or not, and whether recorded in a material form or not, about an individual whose identity is apparent, or can reasonably be ascertained, from the information or opinion. (section 12 IP Act)
QRIDA	Queensland Rural and Industry Development Authority
QRIDA Board of Directors (The Board)	The Board of Directors are formally accountable to the Minister for Agriculture and Fisheries for the performance of QRIDA. The Board is responsible for the way QRIDA performs its functions and exercises its powers.
Records	Recorded information made or received by a staff member of QRIDA in the course of undertaking their duties. Records are evidence or information about QRIDA's activities. They can be in any format. Examples of records include electronic documents, emails, photographs and text messages. Records created or received are to be captured in a recognised recordkeeping system.

9. Legislative context

- (a) *Rural and Regional Adjustment Act 1994* (Qld)
- (b) *Information Privacy Act 2009* (Qld)
- (c) *Right to Information Act 2009* (Qld)
- (d) *Public Sector Ethics Act 1994* (Qld)

10. Associated documentation

- (a) QRIDA Code of Conduct
- (b) QRIDA Complaints Management Framework
- (c) QRIDA Information Security Framework
- (d) QRIDA Recordkeeping Framework
- (e) Queensland Government [Information access and use policy \(IS33\)](#)

11. References

- (a) [Right to Information Queensland Government website](#)
- (b) [Office of the Information Commissioner Queensland website](#)

12. Executive endorsement

Name: Cameron MacMillan	Position: Chief Executive Officer
Signature: <i>Signed by Cameron McMillan</i>	Date: 10 June 2019

13. Version History

Date	Version	Action	Description / comments
May 2019	1.0		New Framework incorporating Policy and Procedure which informs QRIDA ELT and employees of their Information access responsibilities and obligations under the RTI Act and IP Act.